Part VI- FORMS and DECLARATIONS

1. FORM OF TENDER

Name of Work: ***Annual Plan-Alagappanagar GP-2026-27 Pro.No:324/27 Arangan vazhi-Retarring ward 12-General Civil Work***

To

The Governor of the State of Kerala

Sir,

1. I/We do hereby tender to execute the works enumerated in the Schedule accompanying in accordance with the terms in your tender Notification . . . . . date . . . . . .and specifications and conditions of contract in the bidding document.

2. Copy of the electronically signed specifications signed is also enclosed.

3. I/We further agree to complete the whole work in . . . . . weeks/months from date of receipt of order to start work, and / or in the case of piece-works, maintain the minimum rate or progress specified in Tender Schedule

4.I/We do/do not agree to accept and carry out such portion of the work included in my/our tender as may be allotted to me /us if the whole work be not given to me/us.

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5.In consideration I/We being registered as a Bidder in the Kerala PWD and invited to tender, I/We agree to keep the tender open for acceptance . . . . . days from the date of submission thereof and not to make any modifications in its terms and conditions which are not acceptable to Government.

6. I/We agree that Arbitration shall not be a means of settlement of any disputes or claims arising out of the contract relating to the work.

A sum of Rs . . . .is hereby remitted online on the e-GP web site as Earnest Money. If I/We fail to keep the tender open as aforesaid or make any modifications in that terms and conditions of the tender which are not acceptable to Government.

OR

If after tender is accepted, I/We fail to execute the agreement as provided in clause . . . . . .of tender notifications or to commence the execution of the work as provided in the conditions. I/We agree that the government shall , without prejudice to any other right or remedy be at liberty to forfeit the said earnest money absolutely and also recover from me/us the entire loss that may be caused to the Government by the retender or rearrangement of the work or otherwise under the provision of the Revenue Recovery Act or otherwise.

Acc:

i. Tender Schedule (submitted with Financial Bid) :
ii.Earnest Money Rs . . . . . .
iii. Signed copy of full tender/bid documents:
iv. Signed copy of drawings :
Nationality :

Signature: . . . . . .

Full Name of Bidder: . . . . . .

Place of Residence: . . . . . .

2. PRELIMINARY AGREEMENT FORMAT

PRELIMINARY AGREEMENT

Local Self Government Department

Preliminary Agreement entered into on this . . . . . day of . . . . . (month) Two thousand and . . . .(year) between ***Assistant Engineer, LSGD Section Alagappanagar*** for and on behalf of the Governor of Kerala (hereinafter called for the Government) of the one part and Sri . . . . . .(here enter full name and address of the Bidder) hereinafter called the Bidder of the other part for the execution of the agreement as well as for the executionof the work . . . . . .

WHERE AS the Government invited tenders for the work of ***Annual Plan-Alagappanagar GP-2026-27 Pro.No:324/27 Arangan vazhi- Retarring ward 12-General Civil Work*** by Notification No . . . . . Dated . . . . . .in the . . . . . .

I/We undersigned hereby offer to construct the proposed work in strict accordance with the contract/bid document for the consideration to be calculated in terms of the priced schedule of quantities.

I/We undertake to complete the whole of the works as per the attached schedule from the date of issue of intimation by you that our tender has been accepted and upon being permitted to enter site. I/We further undertake that on failure, subject to the conditions of the contract relating to extension of time, I/We shall pay agreed `Liquidated Damages' for the period during which the

work shall remain incomplete.

I/We hereby deposit with you as Earnest money Rs. . . . . /- (Rupees . . . . . .) [carrying no interest] by means of online payment in the e-GP web site of Kerala in favour of . . . . . .(tender inviting authority) and I/We agree that this sum shall be forfeited in the event of the Employer accepting my/our tender and I/We fail to take up the contract when called upon to do so as per clause 3.6.6 and 7 of ITB of the bid document.

I/We further agree for the deduction of 2.5% from the `Interim Payment/RA Bill' and up to a maximum of 2.5% of the contract value towards the ﷺPerformance Security Deposit', which will be returned as per the relevant clauses in the agreement

I/We will furnish the Performance Guarantee Bond as per the approved format, if our bid is accepted. Bid Security deposited shall be treated as security for the proper fulfilment of the same and shall execute an agreement for the work in the prescribed form. If I/We fails to do this or maintain a specified rate of progress (as specified in the Milestone details of contract data in the bid document), the performance guarantee(both treasury fixed deposit and irrevocable bank Guarantee) and Performance Security Deposit if any deducted from the RA Bills shall be forfeited to Government and fresh tenders shall be called for or the matter otherwise disposed off. If as a result of such measures due to the default of the Bidder to pay the requisite deposit, sign contract or take possession of the work any loss to Government due to the same will be recovered from me/us as arrears of revenue, but should it be a saving to Government. I/We shall have no claim whatever to the difference. Recoveries on this or any other account will be made from the sum that may be due to us on this or any or other subsisting contracts or under the Revenue Recovery act or otherwise the Government may decide

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I/We further agrees that, in the case of becoming the lowest bidder in this tender and in the event of failure on part of me/us to produce any of the original documents, or submit the performance guarantee, or enter into agreement with the first part within the specified time limit, the first part may take appropriate action as provided in the bid document. Recoveries on this or any other account will be made from the sum that may be due to us on this or any or other subsisting contracts or under the Revenue Recovery act or otherwise the Government may decide.

NOW THEREFOR IN THE PRESENCE OF WITNESS it is mutually agreed as follows.

1)The terms and conditions for the said contract having been stipulated in the said tender document and forms to which the I/We have agreed and a copy of which is here to be appended which forms the part of this agreement, it is agreed that the terms and conditions stipulated therein shall bind the parties to this agreement except to the extend to which they are abrogated or altered by express terms and conditions herein agreed to and in which respect the express provisions herein shall supersede those of said tender form.

2) The I/We hereby agreed and undertake to perform and fulfill all the operations and obligations connected with the execution of the said contract work ***.Annual Plan-Alagappanagar GP-2026-27 Pro.No:324/27 Arangan vazhi- Retarring ward 12-General Civil Work*** (hereinafter the name of the work) if awarded in favour of the me/us.)

3)If the Bidder does not come forward and to execute the original agreement after the said work is awarded and selection notice issued in his favour or commits breach of any of the conditions of the contract as stipulated in clause of the notice inviting tenders as quoted above, within the period stipulated then the Government may rearrange the work other wise or get it done departmentally at the risk and the cost of the Bidder and the loss so sustained by the Government can be realized from the Bidder under the Revenue recovery Act as if arrears of land revenue as assessed quantified and fixed by an adjudicating authority consisting of the Secretary Public works, Chief Engineer (Admn) or any other officer or officers authorized by Government in this behalf, taking into consideration the prevailing P.W.D rates and after giving due notice to the Bidder. The decision taken by such authority officer or officers shall be final and conclusive and shall be binding on the Bidder.

4) The Bidder further agrees that any amount found due to the Government under or by virtue of this agreement shall be recoverable from the Bidder from his EMD and his properties movable and imovable as arrears of Land Revenue under the provision of the Revenue Recovery Act for the time being in force or in any other manner as the Government may deem fit in this regard.

5)The Bidder further assures that it is clearly understood that the settlement of claims either by part bills or by final bills will be made only according to the availability of budget provision and allotment of funds made with the Divisional officer in charge of the work under the respective heads of account in which the work is sanctioned and arranged and also subject to the seniority of such bills. No claims for interest or for damages whatsoever shall be made for the related settlement of claims of bills.

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IN WITNESS THERE OF SRI. . . . . .
. . . . . .
.(here enter the name of the officers of the Department)for on behalf of the Governor of Kerala State and . . . . . .
. . . . . .the Bidder have set their hand on the day and year first above written Signed by Sri . . . . . .
. . . . . .(officer / Officers of Public Works Department)

In the presence of witnesses:
1.
2.

Signed and delivered by . . . . . .(Bidder) in the presence of
1.
2.

3. Format for Integrity Pact

(Certificate to be furnished by the bidder with the tender document downloaded from e-GP Website)

CERTIFICATE

I/We . . . . . undertake that the tender submitted by us is downloaded from e-GP Website (www.etenders.kereala.gov.in) and is same in content and form (verbatim), and any deviation, of detected, at any stage, would entitle the Employer to reject our bidding/ offer without assigning any reason or recourse to any penal action and would be legally binding on us.

Signature . . . . . (of Bidder)

Seal . . . . . .

4. Format for Affidavit

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AFFIDAVIT

I/We, ... bidder/Partner/Legal Attorney/Accredited Representative of M/s . . . . . .solemnly declare that:

1. I/We are submitting Tender for the Work . . . . . against Tender Notice No . . . . . dated . . . . . .
2. None of the Partners of our firm is relative of employee of . . . . . (Name of the Employer) who is involved with the arrangement and execution of this work.
3. All information furnished by us in respect of fulfilment of eligibility criteria and qualification information of this Tender is complete, correct and true.
4. All documents/credentials submitted along with this Tender are genuine, authentic, true and valid.
5. I/we undertake to deploy all plant and machinery, tools and tackles, man and materials etc. as required for execution of the work.
6. I/We hereby declare that I/We have perused in detail and examined closely the Central Public Works Department Specifications, Revised Kerala PWD Manual-2012, Kerala PWD Quality Manual and Laboratory Manual, before I/We submit the tender/ bid and I/We agree to be bound by and comply with all such specifications and requirements.
7. If any information and document submitted is found to be false/incorrect at any time, department may cancel my/our Tender and action as deemed fit may be taken against us,

including termination of contract, forfeiture of all dues including Earnest Money, revoking of Bank Guarantees and banning/delisting of our firm and all partners of the firm etc.

Signature of the Tenderer : . . . . . .

Dated . . . . . .

5. Form of Performance Guarantee by Bank

1) This deed of Guarantee made on the day of . . . . . (month & year) between Bank of . . . . . (hereinafter called the " Bank ") represented by . . . . . .(name of authorised signatory) of the one part, and the . . . . . . (tender inviting authority) (hereinafter called " the Employer ") represented by . . . . . .(name) of the other part.

2) Whereas Employer has awarded the contract for . . . . . .(Name of work as per Notice Inviting Tender) (hereinafter called the contract) to . . . . . .(Name of the Contractor) hereinafter called the " Contractor ".

3) AND WHEREAS the Contractor is bound by the said Contract to submit to the Employer aPerformance Guarantee for a total amount of . . . . . (Amount in figures and words).

4) Now we the Undersigned . . . . . (Name of the Bank and Branch) being fully authorized to sign and to incur obligations for and on behalf of and in the nameof . . . . . (Full name of Bank), hereby declare that the said Bank will guarantee the Employer the full amount of . . . . . (Amount in figures and Words) as stated above.

5) After the Contractor has signed the aforementioned Contract with the Employer, the Bank is engaged to pay the Employer, any amount up to and inclusive of the aforementioned full amount upon written order from the Employer to indemnify the Employer for any liability of damage

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resulting from any defects or shortcomings of the Contractor or the debts he may have incurred to any parties involved in the Works under the Contract mentioned above, whether these defects or shortcomings or debts are actual or estimated or expected. The Bank will deliver the money required by the Employer immediately on demand without delay and demur and without reference to the Contractor and without the necessity of a previous notice or of judicial or administrative procedures and without it being necessary to prove to the Bank the liability or damages resulting from any defects or shortcomings or debts of the Contractor. The Bank shall pay to the Employer any money so demanded notwithstanding any dispute/disputes raised by the Contractor in any suit or proceedings pending before any Court, Tribunal or Arbitrator/s relating thereto and the liability under this guarantee shall be absolute and unequivocal.

6) This Guarantee is valid till . . . . . (valid till 28(twenty-eight) days from the completion of defects liability period as per clause . . . . . .of bidding document).

7) At any time during the period in which this Guarantee is still valid, if the Employer agrees to grant a time extension to the Contractor or if the Contractor fails to complete the Works within the time of completion as stated in the Contract, or fails to discharge himself of the liability or damages or debts as stated under Para 5, above, it is understood that the Bank will extend this Guarantee under the same conditions for the required time on demand by the Employer and at the cost of the Contractor.

8) The Guarantee hereinbefore contained shall not be affected by any change in the Constitution of the Bank or of the Contractor.

9) The neglect or forbearance of the Employer in enforcement of payment of any moneys, the payment whereof is intended to be hereby secured or the giving of time by the Employer for the payment hereof shall in no way relieve the bank of their liability under this deed.

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10) The expressions ‘the Employer’, ‘the Bank’ and ‘the Contractor’ hereinbefore used shall include their respective successors and assigns.

11)Notwithstanding anything contained herein:

a) Our liability under this Bank Guarantee shall not exceed . . . . . .(Rupees . . . . . .)

b) This Bank Guarantee shall be valid up to . . . . . .

IN WITNESS WHEREOF I/We of the bank have signed and sealed this guarantee on the. . . . . .day of . . . . . (Month & year) being herewith duly authorized. For and on behalf of the . . . . . Bank.

Signature of Authorized Bank official

Name : . . . . . .

Designation : . . . . . .

Stamp/Seal of the Bank : . . . . . .

Signed, sealed and delivered for and on behalf of the Bank by the above named . . . . . .in the presence of :

Witness 1.	Witness 2.
Signature	Signature . . . . .
Name	Name . . . . .
Address	Address . . . . .

6. Requisition Form for e-Payment

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Requisition for e-Payment

[To be attached with tender form as per G.O (P) No.06/2012/PWD dated 10/01/2012]

Certified that I am having a Savings / Current Account in . . . . . (Name of Bank) at . . . . . .(Name of Branch) with IFSC Code . . . . . .

The Account Number is : . . . . . .

I wish to receive all payments in this account through NEFT and RTGS systems, as the case may be, for all payments relating to this work.

Name of Bidder

Place: . . . . . .

Date: . . . . . .

7. SAMPLE GUARANTEE BOND for termite-proof/water and leak-proof work.

This AGREEMENT made this . . . . . .day of . . . . . .(month) two thousand . . . . . (year) between M/s . . . . . (Hereinafter called the Guarantor/Contractor of the one part) and the . . . . . .(Employer on behalf of the Hon. Governor of Kerala hereinafter called the

Government of the other part).

WHEREAS this agreement is supplementary to the contract (hereinafter called the Contract) dated . . . . . made between the Guarantor of the one part and the Employer of the other part, whereby the Contractor, inter alia, undertook to render the buildings and structures in the said Contract recited, completely termite-proof/water and leak-proof.

AND WHEREAS the Guarantor agreed to give a guarantee to the effect that the said structure will remain termite-proof for ten years to be reckoned from the date after the maintenance period prescribed in the contract expires.

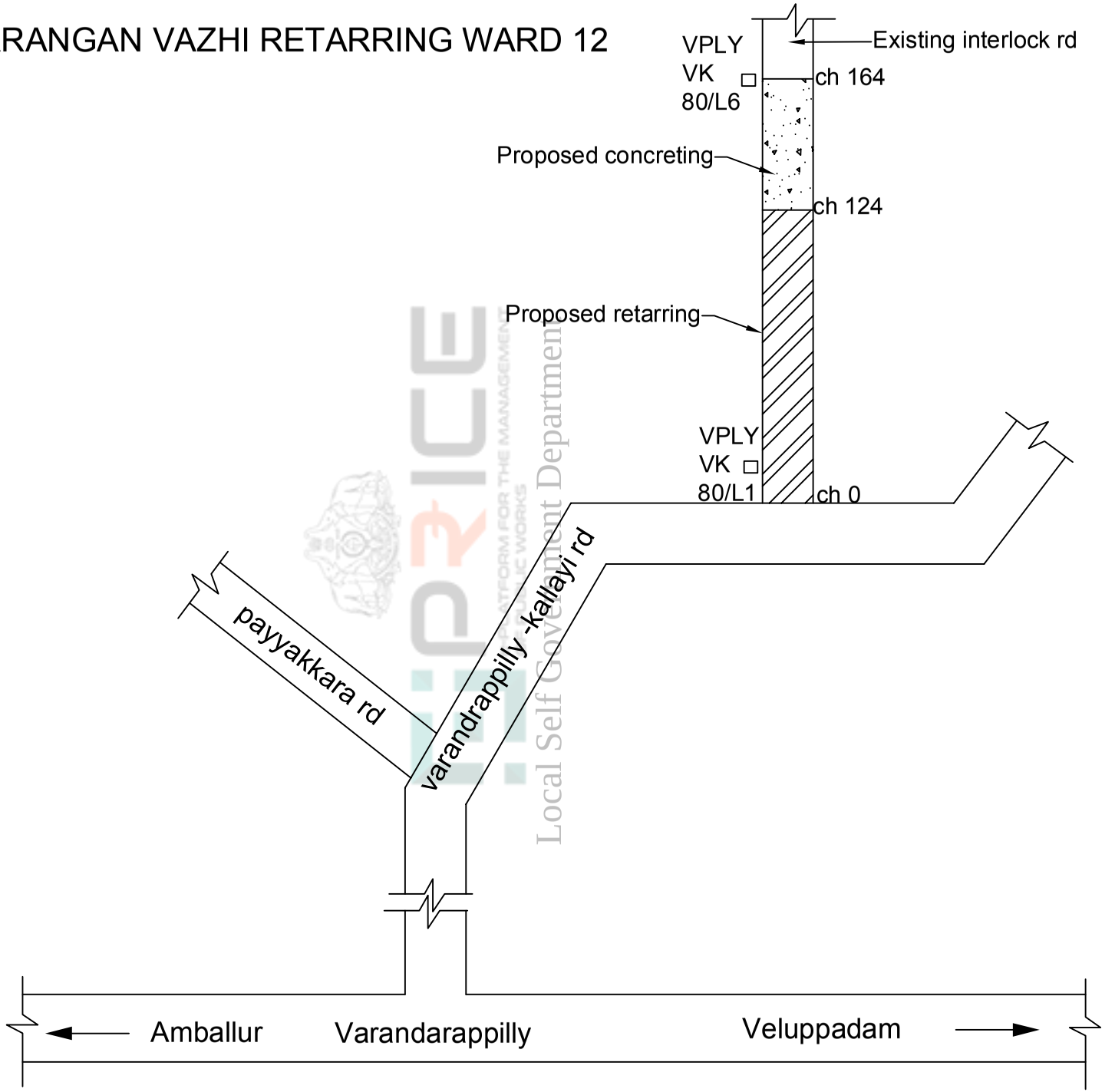
During this period of guarantee the Guarantor shall make good all defects and for that matter, shall replace at his risk and cost such wooden members as may be damaged by termites, and in case of any other defect being found he shall render the building waterproof/termite-proof at his cost to the satisfaction of the Engineer-in-charge, and shall commence the works of such rectification within seven days from date of issuing notice from the Engineer-incharge/ Competent authority calling upon him to rectify the defects, failing which the work shall be got done by the Department by some other Contractor at the Guarantor's cost and risk, and in the latter case the decision of the Engineer-in-charge as to the cost recoverable form the Guarantor shall be final and binding.

That if the Guarantor fails to execute the waterproofing/anti-termite treatment or commits breaches hereunder then the Guarantor will indemnify principal and his successors against all loss, damage, cost, expense or otherwise which may be incurred by him by reason of any default on the part of the Guarantor in performance and observance of this supplemental agreement. As to the amount of loss and/or damage and/or cost incurred by the Government, the decision of the Engineer-in-charge will be final and binding on the parties

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IN WITNESS WHEREOF these presents have been executed by the Obligor . . . . . .and by . . . . . for and on behalf of the Governor of Kerala on the day, month and year first above written.
Signed, sealed and delivered by OBLIGOR in the presence of witnesses
1.
2.
Signed for and on behalf of THE GOVERNER OF KERALA by . . . . . in the presence of witnesses
1
2

SITE PLAN- ARANGAN VAZHI RETARRING WARD 12



NOT TO SCALE

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